



CHAPTER 75

An Act to amend the Education (Scotland) Act, 1946,
and certain other enactments relating to education in
Scotland and for purposes connected therewith.

[5th November, 1956]

BE it enacted by the Queen's most Excellent Majesty, by
and with the advice and consent of the Lords Spiritual
and Temporal, and Commons, in this present Parliament
assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section and with the approval of the Secretary of State an education authority shall have power for the purpose of reducing the risk of accident to pupils going to or returning from schools or other educational establishments in their area and under their management, or while actually present at such schools or establishments, to do work to improve the safety of any private road which is used by these pupils or which is in the vicinity of such a school or establishment, and to provide or arrange for the provision of safety barriers at or near the entrances to such schools and establishments.

Safety of
pupils going
to and from
school.

(2) Any work for the purpose of the last foregoing subsection may be undertaken by the education authority in co-operation with any other person.

(3) For the purpose of subsection (1) of this section an education authority may enter on and carry out work on any land:

Provided that where an education authority propose to carry out any such work on land which is in possession of another person, the authority shall obtain the consent of the owner and of the occupier of such land, or shall satisfy the Secretary of State that the owner or the occupier cannot be found.

(4) Where an education authority propose to provide or arrange for the provision of safety barriers for the purpose of subsection (1) of this section on any road, the authority shall—

- (a) if it is a public road, obtain the consent of the authority responsible for the maintenance of such road ;
- (b) if it is a private road, consult the authority responsible for the maintenance of public roads in the area in which that private road is situated.

(5) For the purposes of this section the expression “ public road ” means a road or street managed and maintained by the Secretary of State or by a county or town council, and the expression “ private road ” means any road, street or path other than a public road, and includes any ford or bridge over which a private road passes.

Amendment
of s. 7 of
principal Act.

2. For subsection (1) of section seven of the Education (Scotland) Act, 1946 (hereinafter in this Act referred to as “ the principal Act ”) the following subsection shall be substituted—

“ (1) The functions of an education authority under the foregoing provisions of this Act shall be exercised in accordance with schemes prepared as hereinafter provided and approved by the Secretary of State under section sixty-five of this Act, except where such functions relate to—

- (a) further education as described in paragraphs (b) and (c) of subsection (5) of section one of this Act ; or
- (b) such facilities as are mentioned in section three of this Act ; or
- (c) special educational treatment other than in special schools.”

Further
provision as
to enforcement
of attendance
at school.

3.—(1) Where—

- (a) an education authority in the exercise of the powers conferred upon them by subsection (2) of section thirty-five of the principal Act (which relates to failure to attend a public school regularly) postpone a decision as to whether to prosecute a parent ; or
- (b) a court before which a prosecution has been brought under section thirty-eight of the principal Act (which relates to legal proceedings) for an offence against section thirty-five of the said Act is satisfied that a child has failed without reasonable excuse to attend regularly at school, but does not, in the exercise of the powers conferred upon it by subsection (2) of the said section thirty-eight, direct that the child be brought before a juvenile court ;

the education authority or the court, as the case may be, may, if the child is still of school age, make an attendance order requiring the parent to cause the child to attend the public school

which he has been attending, or, if the child has changed his residence, a school attended by children residing in the same neighbourhood as the child.

(2) The provisions of subsection (2), in so far as they relate to the school to be named in an attendance order, and of subsections (5), (6), (7) and (8) of section thirty-six of the principal Act (which relates to attendance orders) shall apply in relation to an attendance order made under the last foregoing subsection, and the provisions of subsections (3) and (4) of the said section shall apply in relation to an order so made by an education authority.

(3) Where a child in respect of whom an attendance order is in force moves his residence, the education authority of the area to which the child has moved may amend that order by substituting for the name of the school appearing in the order the name of a school attended by children residing in the same neighbourhood as the child, and the provisions of subsection (5) of the said section thirty-six shall apply in the making of any amendment to such an order under this subsection.

(4) In the last foregoing subsection the expression "attendance order" means an order made under subsection (1) of this section or under the said section thirty-six.

(5) Without prejudice to the institution of proceedings for an offence against section thirty-five or section thirty-six of the principal Act or the exercise of the power conferred by subsection (2) of section thirty-eight of that Act (which empowers a court to direct that a child be brought before a juvenile court), where a child of school age has failed to attend a public school regularly, the education authority concerned may, if satisfied that it is necessary so to do for the purpose of securing the regular attendance of the child at school, direct that the child be brought before a juvenile court, and that court shall have in respect of any child so brought before it the like power as is conferred on such a court by the said subsection (2).

(6) The provisions of subsection (4) of section thirty-eight of the principal Act shall apply in relation to any child with respect to whom a direction has been given under the last foregoing subsection, as they do in relation to a child with respect to whom a direction has been given under that section.

4. After subsection (3) of section forty-three of the principal Act (which empowers education authorities to enable persons to take advantage of educational facilities), there shall be inserted the following subsection—

"(3A) The said regulations shall include a provision requiring an education authority, in assessing the amount of

of s. 43 of
principal Act.

any scholarship, bursary or other allowance granted under subsection (1) of this section to a person over school age, to include a sum for the maintenance of dependants of any such person."

Provision of
transport and
travelling
expenses.

5. For section forty-five of the principal Act (which relates to the provision of transport and other facilities) there shall be substituted the following section—

"45.—(1) An education authority shall make such arrangements as they consider necessary or as the Secretary of State may direct for the provision of any of the following facilities in respect of pupils attending schools or other educational establishments—

- (a) for their conveyance without charge for the whole or part of the journey between their homes and the schools or other educational establishments which they are attending ;
- (b) for making bicycles or other suitable means of transport available to the pupils, or to their parents for the use of the pupils, upon such terms and conditions as may be arranged, or for paying money allowances in lieu thereof ;
- (c) for paying the whole or any part, as the authority think fit, of their reasonable travelling expenses,

and any such arrangement may in respect of any pupil make provision for more than one of the facilities specified in the foregoing paragraphs of this subsection.

(2) Where the requirements of pupils, for the conveyance of whom arrangements have been made by an education authority under paragraph (a) of the last foregoing subsection, have been met, it shall be the duty of that authority, where there are any vacant places in any vehicle used for such conveyance, to allow such vacant places to be used without charge by other pupils to be selected by the authority.

(3) Where as a condition of admission to any educational institution a person is required to attend for examination or interview at a particular place, the education authority may pay the whole or part of the expenses necessarily incurred by that person in respect of such attendance."

Duties of
education
authorities
as to dental
treatment.

6.—(1) It shall be the duty of every education authority to make such arrangements as are necessary for securing that there are available for pupils in attendance at any public school and

young persons in attendance at any junior college or other educational establishment under their management comprehensive facilities for free dental treatment provided either—

- (a) by persons employed or engaged by, and at the expense of, the authority, either regularly (whether whole-time or part-time) or for the purposes of particular cases ; or
- (b) under arrangements made by a Regional Hospital Board within the meaning of the National Health Service (Scotland) Act, 1947 ;

or partly in the one way and partly in the other ; and every education authority shall have power to make arrangements for rendering available to other pupils in attendance at any educational establishment under their management any facilities which they have caused to be made available in the discharge of the duty imposed on them by the foregoing provisions of this subsection.

(2) Subsections (4) to (7) of section fifty-one of the principal Act (which provide for the medical supervision and treatment of pupils at schools and other educational establishments and for the furnishing of information to the Secretary of State) shall have effect as if references to the facilities mentioned in subsection (3) of that section, to medical treatment provided under that section and to functions of the education authority under that section included respectively references to the facilities rendered available in pursuance of subsection (1) of this section, to dental treatment provided under that subsection and to functions of an education authority under that subsection.

(3) Section five of the Education (Miscellaneous Provisions) Act, 1953, (which relates to the duties of education authorities in Scotland as to dental treatment) is hereby repealed.

7. Section sixty-two of the principal Act (which relates to inspection of certain schools on the request of their managers) shall cease to have effect.

Discontinuance
of provision
for inspection
of schools
at request of
managers.

8. For section seventy-five of the principal Act (which relates to the laying of abstracts of receipts and expenditure before Parliament) there shall be substituted the following section—

Accountant's
annual report.

“ 75.—(1) The Accountant shall prepare and submit to the Secretary of State an annual report which shall include abstracts in such detail as the Secretary of State may require of the accounts of—

- (a) all education authorities, including the accounts of educational endowments within the meaning of Part VI of this Act administered by them ;

- (b) all governing bodies of grant-aided schools and other grant-aided educational establishments ;
- (c) all other bodies providing educational services in respect of which they receive grant ;
- (d) all governing bodies of educational endowments whose accounts the Accountant is empowered to examine under subsection (4) of section one hundred and twenty-two of this Act ; and
- (e) all bodies of managers of approved schools within the meaning of the Children and Young Persons (Scotland) Act, 1937 :

Provided that the Secretary of State may direct that abstracts of the accounts of any body or category of bodies falling within the description in paragraph (b) or paragraph (c) may be omitted from the report.

(2) The report of the Accountant shall be laid before Parliament as soon as may be after it has been submitted to the Secretary of State."

Training of
teachers and
certificates of
competency.

9. For section seventy-seven of the principal Act there shall be substituted the following section—

" 77.—(1) Subject to the provisions of this section, the Secretary of State may award—

- (a) certificates of competency to teach in schools or other educational establishments, and
- (b) documents recognising persons as competent to fulfil the duties of leaders in service in connection with organised cultural, social and physical training and other leisure-time occupation.

(2) The Secretary of State may by regulations constitute, alter the constitution of, incorporate and dissolve committees and other bodies for the training of teachers and leaders and may prescribe the duties to be performed by the said committees or other bodies, may confer upon them such powers as may seem appropriate, and may make such consequential, ancillary and incidental provisions as may appear to him to be expedient.

(3) Without prejudice to the generality of the provisions of the last foregoing subsection, regulations under this section may—

- (a) prescribe the courses of education and training to be provided by the said committees or other bodies, and may delegate to the said committees or other bodies the power to award any of the certificates or documents which the Secretary of State is empowered to award under subsection (1) of this section ;

(b) empower any such committee or other body—

(i) to provide short courses, or to arrange conferences, for teachers, leaders or other persons either by such committee or other body alone or in co-operation with education authorities or other bodies; and

(ii) to give assistance or advice to education authorities or other bodies in the provision by them of such courses or the arrangement of such conferences as aforesaid;

(c) prescribe the types of certificates and documents which may be awarded under this section, the qualifications which such certificates and documents may attest, the conditions to be fulfilled to qualify for the award of such certificates and documents and the circumstances in which the Secretary of State may suspend or withdraw such certificates and documents.

(4) The National Committee, the Provincial Committees and the Committees of Management shall be deemed to be committees constituted under subsection (2) of this section."

10. For section one hundred and one of the principal Act (which relates to the approval and effect of the Teachers Superannuation Scheme) there shall be substituted the following section—

Replacement
of Teachers
Superannua-
tion Scheme.

" 101.—(1) The Secretary of State may make regulations providing for the superannuation of teachers, and any such regulations may amend or revoke the Teachers Superannuation Scheme, including the articles set forth in the Third Schedule to this Act.

(2) Regulations made under this section shall prescribe the date upon which these regulations are to come into operation, and different dates may be prescribed for different parts of the said regulations, and any date so prescribed may be a date earlier than the date upon which the regulations are made, so, however, that so much of any regulations as provides that any provision thereof is to have effect from a date prior to the making of the regulations shall not place any teacher affected by them in a worse position than he would have been if the regulations had been made to have effect only as from the date of the making thereof.

(3) The provisions of Part IV of and the Third Schedule to this Act shall apply to any regulations made under this section as they apply to the Teachers Superannuation Scheme."

Accounts and
audit of
educational
endowments.

11.—(1) For section one hundred and twenty-two of the principal Act there shall be substituted the following section—

“ 122.—(1) It shall be the duty of the governing body of every educational endowment administered under a scheme made by the Court of Session which provides for the audit of the accounts of that endowment in such manner as the Secretary of State may prescribe, or administered under a provisional order made under the Act of 1878, or under a scheme made under the Act of 1882, the Acts of 1928 to 1935, or this Act, other than any such endowment to which the provisions of subsection (2) of section one hundred and ninety-six of the Local Government (Scotland) Act, 1947, apply, to comply with the following provisions of this section.

(2) The governing body of every endowment to which this section applies shall keep proper accounts and other records in relation to the functioning of that body, and shall prepare in respect of each financial year a statement of accounts in such form as the Secretary of State, or, in the case of a university endowment or the Carnegie Trust, the Scottish Universities Committee of the Privy Council, may by order direct.

(3) The accounts of every endowment to which this section applies shall be audited each year by an auditor appointed by the governing body with the approval of the Secretary of State, or, in the case of a university endowment or the Carnegie Trust, of the Scottish Universities Committee of the Privy Council.

(4) The governing body of every endowment to which this section applies, other than a theological endowment a university endowment or the Carnegie Trust, shall, within such period after the end of the financial year of the endowment as the Secretary of State may direct, send such copies as the Accountant may require of the audited accounts of the endowment to the Accountant, who may examine these accounts and call for any other records kept in pursuance of subsection (2) of this section and for such additional information as he may require.

(5) Where the Accountant is of the opinion that the governing body of any endowment, the accounts of which he has examined in pursuance of the last foregoing subsection, have not complied in any respect with any enactment, deed or other instrument applying to them, he shall so report to that body and shall afford to them an opportunity of satisfying him that they are not in default.

(6) Where the Accountant is not satisfied as aforesaid, he shall, unless in his opinion any default is of minor importance, report such default to the Secretary of State.

(7) The Accountant shall each year send a copy of the audited accounts of every endowment which he has power to examine under subsection (4) of this section to the Registrar of Educational Endowments, who shall make such accounts available for public inspection at all reasonable times."

(2) The provisions of any governing instrument referred to in subsection (1) of section one hundred and twenty-two of the principal Act relating to the keeping, audit or publication of the accounts of any educational endowment are hereby revoked except in so far as they prescribe the financial year of any such endowment, and any such provision in a scheme framed under subsection (4) or in an amended scheme framed under subsection (5) of section one hundred and twenty-three of the principal Act which has not been approved by Order in Council under section one hundred and twenty-five of the principal Act before this Act comes into operation shall be of no force or effect.

12.—(1) For section one hundred and twenty-four of the principal Act (which relates to appeals to the Court of Session on questions of law) there shall be substituted the following section—

Appeal against
educational
endowment
schemes on
questions of
law.

" 124. If—

- (a) the governing body of any endowment to which a scheme or an amended scheme relates, or any other person directly affected by any such scheme, feels aggrieved by the scheme on the ground that it is not within the scope of, or is not made in conformity with, this Part of this Act, or
- (b) any person holding any office, place or employment, or receiving any pension, compensation allowance, bursary or emolument under or arising out of any endowment dealt with by such a scheme, feels aggrieved by the scheme on the ground that it does not comply with the provisions of this Part of this Act as to saving or making due compensation for his vested interests,

such governing body or other person may, within one month after the publication of the scheme, appeal to the Court of Session, and, if the Court decides that the scheme is contrary to law on any of the grounds in this section mentioned, the Secretary of State shall not confirm the said scheme, but he may, if he thinks fit, frame an amended scheme."

(2) Nothing in the provisions of this section shall affect any proceedings instituted before the coming into operation of this Act.

Minor and consequential amendments and repeals.

13.—(1) The amendments set forth in Part I and Part II of the First Schedule to this Act, being amendments which relate to minor matters or amendments consequential upon amendments made by this Act, shall be made in the principal Act and in the Acts specified in Part II respectively.

(2) The enactments set out in the Second Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

Citation, extent, commencement and construction.

14.—(1) This Act may be cited as the Education (Scotland) Act, 1956.

(2) This Act shall extend to Scotland only.

(3) This Act shall come into operation at the expiration of one month beginning with the date of its passing.

(4) The Education (Scotland) Acts, 1939 to 1953, and this Act shall be construed as one and may be cited together as the Education (Scotland) Acts, 1939 to 1956.

SCHEDULES

FIRST SCHEDULE

Section 13.

MINOR AND CONSEQUENTIAL AMENDMENTS

PART I

Education (Scotland) Act, 1946, 9 and 10 Geo. 6. c. 72

In section seventeen, at the end there shall be inserted the following subsection—

“(6) For the avoidance of doubt the last foregoing subsection shall apply and shall be deemed always to have applied in relation to all teachers and other officers employed by an education authority whether or not any such teacher and other officer is employed in or about an educational establishment.”

In section twenty-two, in paragraph (b) of subsection (1) after the word “sell,” there shall be inserted the word “feu.”

In section thirty-five, in subsection (2) after the words “this section” there shall be inserted the words “in respect of a child resident in their area”, and for the words “one month” there shall be substituted the words “six weeks”.

In section thirty-six, in subsection (6) after the words “was made” there shall be inserted the words “or amended”, and in subsection (7) the words “and continues to reside in their area” shall be omitted.

In section seventy, in paragraph (10) for the words “pupils over school age” there shall be substituted the word “persons”; at the end of that paragraph there shall be inserted the words “and to maintain any persons dependent on them while so doing”.

In section seventy-nine, after subsection (1) there shall be inserted the following subsection—

“(1A) Regulations made under this section may include provisions as to the application of any scales prescribed therein to the salaries of teachers, and may make such consequential, ancillary and incidental provisions as appear to the Secretary of State to be necessary or desirable.”

In section eighty-eight the words from “Such expenses” to the end of the section shall be omitted and at the end of the section there shall be added the following subsection—

“(2) Without prejudice to the generality of the last foregoing subsection the expenses which may be authorised under the said subsection may include—

- (a) contributions to any association of education authorities concerned in the consideration of educational questions;
- (b) travelling and other expenses necessarily incurred by a teacher or other officer of the education authority with the approval of that authority in the performance of, or for the purpose of, his functions as a teacher or officer, as the case may be; and
- (c) expenses of removal and of the temporary accommodation of any such teacher or officer ordinarily resident in the area of another education authority who has been appointed to the service of the authority concerned.”

1ST SCH.
—cont.

In section one hundred and eight, in subsection (1) the definition of "Service" shall be omitted.

In section one hundred and nine, in subsection (1), for paragraph (a) there shall be substituted the following paragraph—

"(a) where the proprietor of an independent school makes application for the purpose and furnishes the information required by regulations made under this section, such of the particulars prescribed by regulations so made as the Secretary of State may direct, and".

In section one hundred and sixteen, in paragraph (d) of subsection (1) after the words "or new" there shall be inserted the words ", and for dissolving any governing body whose endowment is transferred to another governing body", and in subsection (5) the words from "and that the accountant" to the end of the subsection shall be omitted.

In section one hundred and seventeen, in subsection (1) for the words "contained in the governing instrument of the endowment" there shall be substituted the words "relating to the land in any Act, deed or other instrument", and in subsection (3) the words "a governing instrument containing" shall be omitted.

In section one hundred and twenty-three, in subsection (2) the words "or a proper abstract thereof" shall be omitted, and in subsection (5) the words "or a proper abstract of it" shall be omitted and for the words from "After the expiration" to "the Secretary of State may" there shall be substituted the words "Subject to the provisions of the next following section, the Secretary of State may, after the expiration of the said month,".

In section one hundred and thirty-four, in subsection (1) in the definition of "Educational purposes" for the words "of poor children" there shall be substituted the words "of poor persons under the age of twenty-one years".

In section one hundred and forty-three, in subsection (1) for the definition of "Central Institution" there shall be substituted the following definition—

"Central Institution" means an educational establishment for the provision of further education recognised as a central institution by regulations made by the Secretary of State; and".

In the definition of "grant-aided school" at the end there shall be added the following words ", but does not include a public school".

PART II

ENACTMENTS OTHER THAN EDUCATION (SCOTLAND) ACT, 1946

Local Government (Scotland) Act, 1947, 10 and 11 Geo. 6. c. 43

In head (ii) of paragraph (a) of section one hundred and twenty-five for the word "committee" there shall be substituted the word "sub-committee".

In the Sixth Schedule in the maximum period for repayment of a loan under the Education (Scotland) Act, 1946, for the word "fifty" there shall be substituted the word "sixty".

Criminal Justice (Scotland) Act, 1949, 12, 13 and 14 Geo. 6. c. 94

In section seventy, in paragraph (b) of subsection (1) the words "and the order for his detention was made in respect of an offence" shall be omitted.

In section seventy-two, in subsection (1) after "1946" there shall be inserted the words "or an order made under section three of the Education (Scotland) Act, 1956".

1ST SCH.
—cont.

SECOND SCHEDULE

Section 13.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 72. 1 & 2 Eliz. 2. c. 33.	The Education (Scotland) Act, 1946. The Education (Miscellaneous Provisions) Act, 1953.	Section sixty-two. The Sixth Schedule. Section five. Section nineteen. In section twenty, in subsection (2) the words "except section five thereof", in subsection (3) the words "except as aforesaid" and in subsection (5) the words "except sections five and nineteen thereof".
4 & 5 Eliz. 2. c. 53.	The Teachers (Superannuation) Act, 1956.	In section thirty-two, paragraph (2).

— — — — —

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Children and Young Persons (Scotland) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 37.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
National Health Service (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 27.
Local Government (Scotland) Act, 1947... ..	10 & 11 Geo. 6. c. 43.
Criminal Justice (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 94.
Education (Miscellaneous Provisions) Act, 1953	1 & 2 Eliz. 2. c. 33.
Teachers (Superannuation) Act, 1956	4 & 5 Eliz. 2. c. 53.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament